

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kevin Nicholas	Team: Team # 8	CCRB Case #: 200704990	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 03/13/2007 6:04 PM	Location of Incident: Myrtle Avenue and Sandford Street	18 Mo. SOL 9/13/2008	Precinct: 79
Date/Time CV Reported Tue, 04/10/2007 1:42 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Tue, 04/10/2007 1:42 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Clifford Louis	06651	927098	079 PCT
2. POM Carlos Vega	18843	916854	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Squibb	31733	907387	079 PCT
2. POM Christophr Richards	22300	921705	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Carlos Vega	Abuse: PO Carlos Vega stopped § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . POM Clifford Louis	Abuse: PO Clifford Louis stopped § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM Carlos Vega	Force: PO Carlos Vega used physical force against § 87(2)(b)	C . Unfounded
D . POM Carlos Vega	Abuse: PO Carlos Vega damaged § 87(2)(b)s property.	D . Unfounded
E . POM Clifford Louis	Abuse: PO Clifford Louis searched the car in which § 87(2)(b) was an occupant.	E . Unsubstantiated
F . POM Carlos Vega	Abuse: PO Carlos Vega searched the car in which § 87(2)(b) was an occupant.	F . Unsubstantiated
G . POM Carlos Vega	Force: PO Carlos Vega used physical force against § 87(2)(b)	G . Alleged Victim Unavailable
H . POM Carlos Vega	Abuse: PO Carlos Vega did not obtain medical treatment for § 87(2)(b)	H . Unfounded

Synopsis

§ 87(2)(b) mailed in a handwritten civilian complaint report on April 5, 2007. On March 13, 2007 at approximately 6:04 PM, § 87(2)(b) exited a bodega on Myrtle Avenue between Sandford Street and Bedford Avenue in Brooklyn. § 87(2)(b) began walking down the street when an individual he knew from the neighborhood, subsequently identified as § 87(2)(b) approached § 87(2)(b) and asked him for a cigarette. Just as § 87(2)(b) was giving § 87(2)(b) a cigarette, a Hispanic male officer, subsequently identified as PO Carlos Vega of the 79th Precinct, and a black male officer, subsequently identified as PO Clifford Louis, appeared in a patrol car, exited and approached § 87(2)(b) and § 87(2)(b) (**allegations A and B**). Without saying anything, PO Vega grabbed § 87(2)(b)'s arms and threw § 87(2)(b) against his own nearby vehicle (**allegation C**) – as a result, § 87(2)(b) sustained a bruise to his left elbow and the rain guard on § 87(2)(b)'s vehicle was damaged (**allegation D**). PO Louis then handcuffed § 87(2)(b). Shortly thereafter, PO Vega pushed § 87(2)(b) so that he fell to the ground (**allegation C**) – § 87(2)(b) sustained the same bruise on his elbow and a bruise on his shoulder. While § 87(2)(b) sat on the ground, both officers searched his entire car – including the glove compartment and trunk (**allegations E and F**). § 87(2)(b) stayed nearby at this time and continued to inquire about the situation. Some time later, PO Vega handcuffed § 87(2)(b) and threw him to the ground as well (**allegation G**). § 87(2)(b) was transported to the stationhouse after an hour and § 87(2)(b) was transported after two hours. At the stationhouse, § 87(2)(b) requested medical attention from PO Vega who refused to obtain medical treatment for him (**allegation H**). § 87(2)(g)

§ 87(2)(g) it is recommended that allegations A and B be exonerated and allegations C, D and H be unfounded. § 87(2)(g)

§ 87(2)(g) it is recommended that allegations E and F be unsubstantiated. § 87(2)(g) it is recommended that allegation G be closed as victim unavailable.

Summary of Complaint

§ 87(2)(b) § 87(2)(b) § 87(2)(b) -old black male with black hair, was interviewed at § 87(2)(b) at Rikers Island on March 13, 2007 (encl. 5 A-D). He also mailed in a handwritten civilian complaint report (encl. 3 A) which was received at the CCRB on April 10, 2007. § 87(2)(g)

On March 13, 2007 at approximately 6:04 PM, § 87(2)(b) exited an unidentified bodega located on Myrtle Avenue in Brooklyn, between Sandford Street and Bedford Avenue. § 87(2)(b) started walking down Myrtle Avenue towards the Sandford Street intersection with his “juice or whatever” that he had purchased from the store when an unknown male approached and asked § 87(2)(b) for a cigarette – § 87(2)(b) stated that he knew this individual from the neighborhood but didn’t know his name – § 87(2)(b) later identified this individual as § 87(2)(b). This individual was subsequently identified as § 87(2)(b). Five seconds after § 87(2)(b) had exited the bodega, he was about to give § 87(2)(b) a cigarette when a Hispanic male officer and a black male officer, identified respectively as PO Carlos Vega and PO Clifford Louis of the 79th Precinct, stopped their marked patrol car, jumped out and approached § 87(2)(b) (**allegations A and B**).

PO Vega immediately grabbed both of § 87(2)(b)'s arms (**allegation C**) – the officers did not ask § 87(2)(b) for identification. At first, § 87(2)(b) said that he was handcuffed and that PO Vega then threw him against his own vehicle (**allegation C**), a silver Ford Taurus with a North Carolina license plate and dark tinted windows. § 87(2)(b) later clarified that PO Vega first threw him against the vehicle – so that his chest and stomach made contact with the driver side – and PO Louis then handcuffed § 87(2)(b). § 87(2)(b) sustained a bruise to his left elbow. § 87(2)(b) stated that the bruise had gone down by time of his interview). § 87(2)(b)'s vehicle also sustained damage – the rain guard on the driver’s window came loose (**allegation D**). At this time, § 87(2)(b) inquired about the situation and the officers told § 87(2)(b) to mind his own business.

While § 87(2)(b) was handcuffed, PO Vega pushed him to the ground in the street by the trunk of § 87(2)(b)'s vehicle (**allegation C**). § 87(2)(b) sustained several bruises from making contact with the ground – when asked where he sustained bruises in his interview, § 87(2)(b) pointed again to the same elbow and bruise on his right shoulder. § 87(2)(b) stated he also sustained what he referred to as a “scar” on his right outside ankle. When § 87(2)(b) pointed out the area of the supposed injury on his right ankle, however, all that was visible was a dry white patch of skin on which no injury was visible. § 87(2)(b) remained on the ground in a sitting position for approximately two hours. The officers then searched everywhere in § 87(2)(b)'s vehicle – the trunk, passenger side and glove compartment (**allegations E and F**). The officers removed everything in the vehicle.

During this time, § 87(2)(b) asked the officers why they had § 87(2)(b) on the ground – the officers told § 87(2)(b) to shut up or he would be arrested. At some point, PO Vega handcuffed § 87(2)(b) for § 87(2)(b) and threw him on the ground as well (**allegation G**). § 87(2)(b) remained on the ground for an hour before a marked patrol car arrived and § 87(2)(b) was put inside it. The officers would not allow § 87(2)(b) to stand up during this time. After two hours, another marked patrol car arrived and § 87(2)(b) was put inside and then brought to the precinct.

While in the 79th Precinct, PO Vega “harassed” § 87(2)(b) – asking § 87(2)(b) why he was on Myrtle Avenue and what was in his vehicle, and telling § 87(2)(b) that he was not cooperating and that he had “better cooperate or else.” § 87(2)(b) requested medical attention at the precinct from PO Vega and PO Vega denied him medical attention (**allegation H**) – at this time, § 87(2)(b)'s elbow was swollen.

When § 87(2)(b) went to court, he was charged with § 87(2)(b). A few detectives told § 87(2)(b) at court that a woman had made a complaint in January and he was charged with regards to that incident as well. § 87(2)(b) didn't know about all the charges in that case. § 87(2)(b) said the judge dismissed the charges against him regarding this incident.

§ 87(2)(b) denied that he or § 87(2)(b) had any alcohol at the scene. When asked in his interview about the § 87(2)(b), § 87(2)(b) said he had no idea what that was about. § 87(2)(b) did not have any drugs that day nor did § 87(2)(b).

§ 87(2)(b) was shown his handwritten report. § 87(2)(b) said that contrary to what appears on his handwritten complaint report, he is complaining about his arrest on March 13, 2007 – he had originally written down March 14, 2007 because that was the day he was in court. § 87(2)(b) said that he got that complaint form at Rikers and had filled it out there. § 87(2)(b) said that the shield number he provided on the form was “7633” – § 87(2)(b) did know whose shield number this was – it was “written on his property... vouchers.” § 87(2)(b) believed that this was the badge number of the arresting officer.

§ 87(2)(b) knew a few people at the scene who witnessed the incident – he didn't know any of their names except an individual named § 87(2)(b). § 87(2)(b) didn't have any of their contact information. § 87(2)(b) then provided a phone number for an individual named § 87(2)(b) – he said to call this individual (who did not actually witness the incident) and reference § 87(2)(b). § 87(2)(b) said that § 87(2)(b) would then help providing names for witnesses at the scene.

Results of Investigation

Contact Attempts to Victim § 87(2)(b)

§ 87(2)(b) was identified from BADS records as the other individual apprehended at the scene.

A contact letter was mailed to § 87(2)(b) on May 1, 2007 at the address cited on his arrest report. Since § 87(2)(b)'s address on his arrest report did not contain an apartment number, a Coles search was conducted on May 17, 2007 for § 87(2)(b)'s building address. This search yielded negative results for any name similar to § 87(2)(b)'s name. On May 22, 2007, a Lexis-Nexis search was conducted by team supervision for § 87(2)(b)'s address. The results indicated that an § 87(2)(b) lived in apartment § 87(2)(b) at the building address and provided two phone numbers for her. On May 22, 2007, the undersigned called

On March 13, 2007 at approximately 6:04 PM, PO Vega and PO Louis were sitting in their unmarked vehicle at the northeast corner of Walworth Street and Myrtle Avenue. They had been directed to that particular location because it had been listed as a hot spot in the crime information center in the precinct – there have been various community complaints for that location regarding drug transactions and public drinking (there is a liquor store in the vicinity). The officers had been there for a while and observing the location when they noticed that a number of pedestrians were walking around two individuals, § 87(2)(b) and § 87(2)(b) at the corner of Sandford Street and Myrtle Avenue. § 87(2)(b) and § 87(2)(b) were talking to one another and § 87(2)(b) “had a beer in his hand” – the beer container was in plain view (not in a bag), had the color of a beer container and was ultimately determined to be “Night Light” brand or something similar. The officers’ attention was drawn to § 87(2)(b) and § 87(2)(b) because they were standing near the handicap ramp on the sidewalk (a typical cutout design in the sidewalk) and people kept having to walk around them.

The officers watched § 87(2)(b) and § 87(2)(b) for approximately 2-3 minutes. When § 87(2)(b) and § 87(2)(b) “spotted [the officers]”, they both crossed the street. § 87(2)(b) walked towards Nostrand Avenue and Myrtle Avenue. § 87(2)(b) walked towards the northeast side of Sandford Street and Myrtle Avenue, and approached his parked vehicle, which was approximately 3 car lengths away from the officers’ vehicle. As soon as § 87(2)(b) saw the officers, he threw an item, unidentified at the time, into the open window of his vehicle. When PO Vega was asked in his interview how § 87(2)(b) could have determined that PO Vega and PO Louis were officers when they were sitting in an unmarked vehicle, PO Vega said, “Anybody could tell with those police cars... we’ve got a bright orange E-Z pass, plus we’re both in uniform. The windows are not tinted or anything.”

The officers exited and immediately approached § 87(2)(b). PO Vega told PO Louis to stop § 87(2)(b). PO Louis stopped § 87(2)(b) and brought him to the rear of the vehicle. PO Vega asked § 87(2)(b) if the vehicle belonged to him and § 87(2)(b) said yes. As PO Vega looked into the vehicle, he observed small Ziploc bags on the floor of the vehicle. PO Vega immediately identified these types of bags as being common containers for drugs. There bags themselves did not actually contain any drugs.

PO Vega told PO Louis to handcuff § 87(2)(b). PO Louis subsequently handcuffed § 87(2)(b) who was compliant. PO Louis never braced § 87(2)(b) against his vehicle in order to handcuff him. § 87(2)(b) was never against his vehicle at any point. PO Vega entered the back door and saw the bags on the floor of the vehicle. Shortly thereafter, PO Vega looked up – “stretched out my neck like a giraffe” – and did a cursory search around the vehicle to see if there was any other contraband in plain view. PO Vega never looked in the glove compartment or the trunk. After that, PO Vega just locked the vehicle. PO Louis never entered § 87(2)(b)’s vehicle.

A minute after the officers stopped § 87(2)(b), § 87(2)(b) approached the scene and while still holding the alcohol container, very loudly stated, “Why don’t you leave my friend alone?” § 87(2)(b) was very boisterous and belligerent. § 87(2)(b) had a beer in his hand and reeked of alcohol. PO Vega told § 87(2)(b) to place the alcohol container down on the ground – the officers never recovered the bottle. § 87(2)(b) said to the officers, “Lock me up. Why don’t you arrest me?” PO Vega said, “Fine. Turn around, put your hands behind your back.” PO Vega then handcuffed § 87(2)(b). § 87(2)(b) was never placed on the ground at any point – § 87(2)(b) was standing the entire time.

After § 87(2)(b) and § 87(2)(b) were placed in handcuffs they were very polite. § 87(2)(b) was compliant – PO Vega “had no problem with him.”

§ 87(2)(b) asked if he could sit on the curb and the officers told him that was no problem. Neither officer ever pushed § 87(2)(b) or § 87(2)(b) to the ground. § 87(2)(b)’s vehicle never sustained any damage. PO Vega then conducted a warrant check for § 87(2)(b) and found that he had both an open bench warrant and an open investigative card. PO Vega called up the precinct detective squad and asked what the investigative card was in reference to – PO Vega was told that § 87(2)(b) was wanted for rape in the first degree.

PO Vega originally intended on giving § 87(2)(b) a c-summons, but when the officers ran § 87(2)(b)'s name for warrants they got a positive result, and so § 87(2)(b) was arrested as well. The officers then waited for their supervisor to respond to the scene. The officers needed another RMP to help transport. PO Vega could not recall if a supervisor ever actually appeared at the location. PO Vega said that they will occasionally conduct transport without waiting for a supervisor if the supervisors are very busy – sometimes, the officers will be told by Central to just bring their arrests in. There was no conditions sergeant that particular day. PO Vega could not recall if any additional units arrived at the scene at any point. § 87(2)(b) and § 87(2)(b) were ultimately transported back to the stationhouse.

PO Vega processed § 87(2)(b)'s arrest at the stationhouse. § 87(2)(b)

PO Vega never saw any injuries on § 87(2)(b) and § 87(2)(b) never claimed to have any injuries. § 87(2)(b) “was very polite and willing...that’s why I’m surprised at all this stuff.” § 87(2)(b) never mentioned anything to anyone about wanting medical attention.

Officer Statements – PO Louis

PO Louis, a § 87(2)(b)-old black male with black hair, was interviewed at the CCRB on June 19, 2007 (encl. 9 A-C). § 87(2)(g)

On March 13, 2007, PO Louis had a 3:00 PM by 11:35 PM tour and was working in the conditions auto with PO Vega. He was in uniform and they were traveling in unmarked RMP #136, a blue Chevy Impala. He had the following memo book entries (encl. 6 A-B) regarding the incident: “1740 10-75 D, ‘directed patrol’, corner of Sanford & Myrtle. 1748 2 males stopped corner of Sanford and Myrtle. 1804 2 under in regards. 1830 10-62 A, ‘out of service – administrative’, arrest processing. Re: § 87(2)(b) M/B § 87(2)(b). Address: § 87(2)(b) 10-92 C, ‘crime arrest’, for § 87(2)(b), return on a warrant.”

§ 87(2)(a) 160.50

His physical condition was marked as apparently normal. The report indicates that no force was used by either the officers or § 87(2)(b) at the scene.

Property voucher § 87(2)(b) prepared by PO Louis for § 87(2)(b) (encl. 8 A) indicates that § 87(2)(b) was carrying 1 bottle of Prevacid, 1 bottle of Phenytek and 1 key ring containing a key. This property was held for safekeeping – there is no mention of a bottle of alcohol.

On March 13, 2007 around 6:04 PM, while parked at the corner of Myrtle Avenue and Sandford Street, PO Louis and PO Vega observed from their unmarked vehicle § 87(2)(b) and § 87(2)(b) standing “for no apparent reason” on the corner on the same side of the street. § 87(2)(b) and § 87(2)(b) were “impeding pedestrian traffic, which is disorderly conduct.” Pedestrians walking down the street had to either walk around § 87(2)(b) or cross the street because § 87(2)(b) was taking up a lot of space on a small stretch of sidewalk. PO Louis explained that what § 87(2)(b) was doing comprised “a form of intimidation [because] people have to cross the street because they don’t know if they’re going to get robbed or something alike.”

At one point, the officers observed § 87(2)(b) open and close the door of a nearby vehicle. After observing § 87(2)(b) and § 87(2)(b) for approximately two minutes, the officers approached with the intention of stopping both of them – PO Louis wanted to stop § 87(2)(b) for having an open container. At this point, § 87(2)(b) walked away from the scene. When officers walked up to § 87(2)(b) PO Louis saw § 87(2)(b) throw something to the ground – PO Louis could not see exactly what § 87(2)(b) threw at the time, but it was later determined to be small Ziploc bags commonly used to package drugs. The officers did not bother going after § 87(2)(b) at that point.

PO Vega asked § 87(2)(b) what he was doing in the location and § 87(2)(b) said that he knew people in the vicinity. § 87(2)(b) was compliant when the officers interacted with him. At that point, since PO Vega

had apparently seen what § 87(2)(b) had thrown to the ground, PO Vega told PO Louis to handcuff § 87(2)(b). § 87(2)(b) was compliant. When PO Louis was first asked if he ever had to put § 87(2)(b) against a vehicle, he said no. § 87(2)(b) did have a vehicle at the scene – the officers found this out because § 87(2)(b) told them that the nearby vehicle they had observed him enter belonged to his father. When asked in his interview later, however, if § 87(2)(b) was ever against his vehicle, PO Louis said yes – PO Louis did brace § 87(2)(b) against his vehicle in order to handcuff him – PO Louis did not push § 87(2)(b) because “he was compliant, I had no reason to use force.” § 87(2)(b)’s vehicle did not sustain any damage at this time. § 87(2)(b) did not suffer any injuries.

The officers then sat § 87(2)(b) down on the curb. Shortly thereafter, § 87(2)(b) returned to the scene smelling of alcohol and holding an alcohol container in his hand that was inside a bag but partially exposed.

After asking the officers in a belligerent manner why they were arresting his friend, § 87(2)(b) told the officers, “Arrest me, too.” Around this time, PO Louis saw that § 87(2)(b) had put down the container by the corner. PO Louis recovered the container, which he found to be a Night Flight malt liquor container. PO Vega eventually recovered the drug paraphernalia – PO Louis did not actually see where this was recovered. Shortly thereafter, PO Vega handcuffed § 87(2)(b) at the same location. The officers then called their patrol supervisor and waited for the supervisor to arrive in order to verify the arrest. The officers also needed a marked vehicle to transport § 87(2)(b) because their vehicle did not have a partition in the back. When asked in his interview where § 87(2)(b) was positioned at this time, PO Louis responded that § 87(2)(b) was just standing at the same area. When asked however whether § 87(2)(b) was ever sitting or lying on the ground, PO Louis said that § 87(2)(b) was sitting on the ground. § 87(2)(b) had told the officers that he wasn’t feeling well and the officers had told him that he could sit down on the curb. PO Vega never threw § 87(2)(b) to the ground. The patrol supervisor appeared at the scene after ten minutes.

Warrant checks for § 87(2)(b) and § 87(2)(b) were both positive. § 87(2)(b)

PO Louis did not search § 87(2)(b)’s vehicle. PO Louis never saw PO Vega searching § 87(2)(b)’s vehicle.

PO Louis ultimately decided not to charge § 87(2)(b) with disorderly conduct.

Officer Statements – PO Christopher Richards

PO Christopher Richards, a § 87(2)(b)-old white male with brown hair, was interviewed at the CCRB on July 26, 2007 (encl. 16 A-B). On March 13, 2007, he was working a 4:00 PM by 12:00 AM tour and was in the SP10 car, ‘report car’, with PO Squibb – this unit responds to 911 calls. He was in uniform and was in RMP #1336. PO Richards’ memo book entries (encl. 15 A) contain no mention of the incident. The investigation identified PO Richards from the roll call, which indicated that he and PO Squibb were traveling in auto SP10, and from the SPRINT, which indicated that auto SP10 appeared at the scene and conducted prisoner transport.

PO Richards could not recall this incident. Even when the incident was described in detail and he was shown § 87(2)(b)’s arrest photo, he said that the incident still did not sound familiar at all.

Officer Statements – PO Michael Squibb

PO Michael Squibb, a § 87(2)(b)-old white male with brown hair, was interviewed at the CCRB on August 31, 2007 (encl. 18 A-B). On March 13, 2007, he had a 3:00 PM by 11:35 PM tour and was assigned to the conditions team – SP10 – with PO Richards. He was in uniform and traveling in marked RMP #1336. His memo book entries (encl. 17 A-B) contain no mention of this incident.

PO Squibb could not recall this incident. Even when the incident was described in detail, he said that none of it sounded familiar whatsoever. He was shown § 87(2)(b)'s arrest photo and said that he did not look familiar.

Pre-Arraignment Screening Form for § 87(2)(b)

§ 87(2)(b)'s pre-arraignment screening form (encl. 19 A-C) indicates that § 87(2)(b) did not make any complaints to FDNY personnel while at Central Booking. § 87(2)(b) never cited any injuries and no evidence of injury was cited on the form.

SPRINT Printout

SPRINT job #T09668 (encl. 20 A-B) indicates that auto SP7, 'conditions auto', of the 79th Precinct called in a 10-82, 'verification/arrest', at 6:04 PM and stated that they had 2 under at the location. At 6:11 PM, auto SP10, 'report car', of the 79th Precinct called in a 10-89, 'other interim status', and specified that they were exporting one for conditions 2 from location. At 6:34 PM, an arrest was called in. At 6:52 PM, auto SP10 called in a 10-98, 'resuming patrol/available'. Auto SP7 made several calls over the next hour and a half of which the content was not recorded. At 9:14 PM, auto SP7 called in a 10-98, 'resuming patrol/available'. At 9:51 PM, auto SP7 called in yet another 10-82, 'verification/arrest'. At 11:40 PM, auto SP7 called in a 10-92 C, 'crime arrest', in regards to the incident.

NYPD Radio Communications CD

The radio communications CD basically confirms the information found above in the SPRINT printout summary. The 79th Precinct conditions unit called in at one point that they had a male stopped at the corner of Sandford Street and Myrtle Avenue. No further units were needed at that time. At 6:04 PM, the conditions unit called in that they had 2 under. Some time later, "79-10" called in that they were transporting one for conditions.

Roll Call for the 79th Precinct

The tour 3 roll call for the 79th Precinct (encl. 21 A) indicates that PO Vega and PO Louis were assigned to the conditions auto, RMP #2685. PO Squibb and PO Richards appeared to be on the conditions team as well and were assigned to the SP10 auto, RMP #1336.

Bench Warrant for § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)'s Arrest Photo

§ 87(2)(b)'s arrest photo (encl. 23 A) contains no visible injuries – though it should be noted that where he alleged that he sustained injuries (shoulder, elbow, ankle) would not appear on a conventional arrest photo.

Command Log for the 79th Precinct

The command log entries for the 79th Precinct (encl. 24 A) indicate that § 87(2)(b) and § 87(2)(b) were brought into the stationhouse at 6:30 PM. Both of them were marked as being in 'apparently normal' condition. § 87(2)(b) was removed to Central Booking at 3:58 AM § 87(2)(b)

Prisoner Holding Pen Roster for the 79th Precinct

The prisoner holding pen roster for the 79th Precinct (encl. 25 A) indicates § 87(2)(b) and § 87(2)(b) were lodged in the cells at 6:37 PM. No further information is available.

Court Records in Regards to the Above Incident

§ 87(2)(b)'s attorney, § 87(2)(b), was contacted on April 20, 2007 in order to obtain permission from him to interview § 87(2)(b) at Rikers. § 87(2)(b)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)
§ 87(2)(b)

Civilian Criminal Conviction History for § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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§ 87(2)(b)

Civilian Criminal Conviction History for § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

CCRB History of Substantiated Allegations

In case 200307469, a 'refusal to provide name/shield' allegation was substantiated against PO Vega. The board recommended charges and the NYPD imposed a command discipline – A (encl. 1 A-B).

PO Louis has never had any allegations substantiated against him at the CCRB (encl. 1 C).

Conclusions and Recommendations

Officer Identification

As everyone agreed that PO Vega and PO Louis stopped § 87(2)(b) and § 87(2)(b) allegations A and B are pleaded accordingly. As § 87(2)(b) identified the Hispanic male officer fitting PO Vega's description as the officer who pushed him against his car, thereby causing damage to his car, and as the officer who later pushed him to the ground, allegations C and D are pleaded accordingly. As § 87(2)(b) stated that

both PO Louis and PO Vega searched his vehicle, allegations E and F are pleaded accordingly. As § 87(2)(b) stated that PO Vega pushed § 87(2)(b) to the ground after he was handcuffed, allegation G is pleaded accordingly. Because § 87(2)(b) stated that he requested medical attention from PO Vega while at the stationhouse, allegation H is pleaded accordingly.

Undisputed Facts

It is undisputed that at some point while § 87(2)(b) was near his vehicle, PO Vega and PO Louis exited their vehicle and approached him. Shortly thereafter, PO Louis handcuffed § 87(2)(b). It is undisputed that PO Vega went inside § 87(2)(b)'s vehicle and at the very least conducted a cursory search of the inside. Around this time, § 87(2)(b) approached the officers and began inquiring as to why the officers had arrested § 87(2)(b). Shortly thereafter, PO Vega handcuffed § 87(2)(b). Some time later, § 87(2)(b) was transported to the stationhouse in a marked patrol car while § 87(2)(b) remained at the scene. At some point, § 87(2)(b) was also transported to the stationhouse where the officers began arrest processing. § 87(2)(b)

Disputed Issues

§ 87(2)(g) According to § 87(2)(b) he had just exited a bodega when he had briefly stopped to hand § 87(2)(b) a cigarette. According to the officers, § 87(2)(b) and § 87(2)(b) were standing on the corner, having a conversation and blocking pedestrian traffic on a very small stretch of sidewalk for at least a couple of minutes.

§ 87(2)(g) According to PO Louis, when the officers began walking up to § 87(2)(b) he threw an item to the ground. According to PO Vega, § 87(2)(b) approached his car first and upon noticing the officers sitting in their unmarked vehicle, he threw an item in through the open window of his own vehicle.

§ 87(2)(g) According to § 87(2)(b) PO Vega stopped § 87(2)(b) by immediately grabbing both his arms and throwing him face first against his own vehicle, subsequently causing damage to the rain guard. According to the officers, they briefly questioned § 87(2)(b) before PO Vega identified the Ziploc bags and told PO Louis to handcuff § 87(2)(b). PO Louis stated that he did brace § 87(2)(b) against his vehicle when handcuffing him. The officers were consistent though that PO Vega did not use any force in stopping § 87(2)(b). § 87(2)(b) further stated that PO Vega pushed him to the ground after he was handcuffed. Both officers stated that at one point they granted § 87(2)(b) permission to sit down on the curb. Again, the officers were consistent that PO Vega did not use any force when interacting with § 87(2)(b).

§ 87(2)(g) According to § 87(2)(b) both PO Vega and PO Louis searched his vehicle by looking everywhere inside and by checking the glove compartment and the trunk. According to PO Vega, he retrieved the Ziploc bags from the floor inside the car and then just glanced around the inside, conducting a cursory search for additional contraband. According to PO Louis, however, § 87(2)(b) threw the Ziploc bags on the ground – PO Louis never said anything about the bags going inside § 87(2)(b)'s vehicle.

§ 87(2)(g)

Assessment of the Evidence

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Allegation A. PO Carlos Vega stopped § 87(2)(b) and § 87(2)(b)

Allegation B. PO Clifford Louis stopped § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

[REDACTED]

[REDACTED] As a result, it is recommended that allegations A and B be closed, **Exonerated**.

Allegation C. PO Carlos Vega used physical force against § 87(2)(b)

§ 87(2)(g)

[REDACTED]
[REDACTED] As a result, it is recommended that allegation C be closed, **Unfounded**.

Allegation D. PO Carlos Vega damaged § 87(2)(b)'s property.

§ 87(2)(g)

[REDACTED]
[REDACTED] As a result, it is recommended that allegation D be closed, **Unfounded**.

Allegation E. PO Clifford Louis searched the car in which § 87(2)(b) was an occupant.

Allegation F. PO Carlos Vega searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that allegations E and F be closed, **Unsubstantiated**.

Allegation G. PO Carlos Vega used physical force against § 87(2)(b)

§ 87(2)(g)

it is recommended that allegation G be closed, **Victim Unavailable**.

Allegation H. PO Carlos Vega did not obtain medical treatment for § 87(2)(b)

§ 87(2)(g)

As a result, it is recommended that allegation H be closed, **Unfounded**.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: